

MARKET RESEARCH REPORT

1. PR&C Number: W42HEM60306613

2. Title: Warehouse three HVAC upgrade

3. POC Name, Title, Phone Cal Calico, Facility Operations Specialist 504-862-2009

4. Estimated Contract Value (including options):

5. Provide the acquisition background.

The current HVAC system was installed by Building Control Systems LLC (BCS) in January 2007. The competitive nature of the original contract award in 2007 is unknown. No plans or as-builts were provided to the Government following installation of the previous system. Additionally, BCS has performed all maintenance and repairs to the current system.

6. Description of the minimum needs for the requirement including its purpose and any unique features, in terms of performance based task descriptions; system performance requirements, and/or essential physical characteristics.

The New Orleans District requires the installation of six new 4-ton Energy Star Certified heat pump split systems in Warehouse 3. The Government does not have plans or drawings of the existing HVAC system. Due to the unique layout of the warehouse, the Government needs a contractor with knowledge of the existing HVAC system to limit complications and avoid escalated costs.

7. In accordance with Federal Acquisition Regulation (FAR) part 10, market research has been conducted for this acquisition. The following techniques were used (check all that apply):

☒ Historical acquisition information (review of recent market research results for similar or identical supplies/services).

☒ Review of Government and/or commercial databases for relevant information.

☐ Review of Internet resources. List the Web sites visited and provide a brief summary of the query results.

☒ Use of source lists for identical or similar items obtained from Government, professional, and/or industry sources.

☒ Review of catalogs and other generally available product literature (online and/or hard copy).

☐ Meetings, Industry Day, or pre-solicitation conferences with potential offerors.

☐ Publication of formal request for information on the Internet.

☐ Publication of a Sources Sought Announcement in FedBizOpps.

☐ Publication in appropriate technical journals.

☒ Contact with the requester and/or other knowledgeable people in Government and industry regarding the commercial nature of this requirement and standard industry practices in this area of supply/service.

☐ Personal knowledge in procuring supplies/services of this type.

☐ Other: _____

8. Based on the results of the above research, it is determined that this requirement:

☒ Can be met by commercial items, commercial items with customary or minor modifications, or non-developmental items.

OR

☐ Cannot be met by commercial items, commercial items with modifications, or non-developmental items. Further a reevaluation has been made in accordance with FAR 10.0002(c), and the Government requirements cannot be modified in a way that will allow a commercial item to meet the need. Note: Any synopsis of this requirement must include FedBizOpps Numbered Note 26.

OR

____ Other: _____

(Example: Market research may reveal that a combination of commercial/noncommercial items can meet the Government's needs.)

9. Summarize the reasons for the determination in 8 above: (continue on additional sheets if necessary).

HVAC system and services has been sold, leased, or licenced to the general public. As such this requirement is determined to be a commercial service.

10. A summary of the industry sources that were contacted and their related capabilities information. This information should include enough detail to assess opportunities for small business set asides, commercial item/service determinations, and competitive award strategies. If multiple sources cannot be found, clearly identify constraints which limit competition or preclude further source development activities:

BCS is the only responsible source for this action because they are the only source with decades of knowledge and experience with this particular HVAC system in this unique building that can provide the supplies and services required for this project without the substantial duplication of cost and unacceptable delays. No other supplies or services will satisfy agency requirements.

11. Describe activities to identify small business opportunities. If the results indicate that no small business opportunities exist, provide supporting rationale to justify why not.

Sole source to small business, Building Control Systems, LLC. BCS has performed all previous work on the Warehouse 3 HVAC system. BCS installed current system in 2007.

12. Laws or regulations unique to the requirements:

N/A

(If the requirement either can be met, in whole or in part, by commercial items, modified commercial items, or non-developmental items, address numbers 13 through 15 below.)

13. Pricing factors (e.g., pricing history, competitive conditions, overall level of demand, trends in supply and demand, pattern of demand, other impacting market forces, pricing strategies, sources of supplies):

Pricing based on current market trends.

14. Standard commercial industry terms and conditions (e.g., warranty, maintenance, discounts, buyer financing, freight, delivery, acceptance/rejection) under which sales of the required supplies/services are made:

A Technical Representative will perform an inspection of completed work to ensure that all work is in suitable condition.

15. On the basis of the above information, the basic clauses and provisions prescribed in FAR Part 12:

☒ Are sufficient for use in this acquisitions and do not require any substantial tailoring to be consistent with industry's commercial practices.

OR

☐ Require tailoring to be consistent with industry's commercial practices. All such tailoring will be included in the solicitation issued for the required supplies/services.

16. Summarize the market research results and make recommendations to consider in determining the appropriate acquisition strategies.

~~As a result of this market research, MVN concluded that while market research indicates other vendors can perform HVAC work, BCS is the only vendor with the specialized qualifications for this specific requirement.~~

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